

**STATE OF VERMONT
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In Re:	)	
GARY THOMPSON	)	Docket No. PST 06-0400
Roster No. 097-0000647	)	

STIPULATION AND CONSENT ORDER

The Respondent, Gary Thompson, and the State of Vermont, by its Attorney General, William H. Sorrell, stipulate to the statements of Board Authority, Facts and Understandings set forth below and agree to the entry of the following Consent Order by the Vermont State Board of Allied Mental Health Practitioners as a final order in this matter.

Board Authority

1. The Allied Mental Health Practitioners Board has jurisdiction to investigate complaints of unprofessional conduct, conduct hearings, and approve stipulation and consent orders pursuant to 3 V.S.A. §129, and 26 V.S.A. §§4082, 4091 and 4093.

Facts

2. Respondent Gary Thompson of Rutland, Vermont, is a psychotherapist included in the State of Vermont's Roster of Nonlicensed and Noncertified Psychotherapists, holding roster number 097-0000647.
3. Respondent was originally entered on the roster on January 11, 1999, and Respondent's roster status expired on November 30, 2000.
4. By way of history, Respondent was hired by the Rutland Mental Health Services, located in Rutland, Vermont, on or about August 10, 1998 and resigned on or about July 31, 1999.
5. Prior to submitting his resignation, Respondent was notified by his supervisor that, prior to leaving, it was necessary for him to complete various documents, including but not limited to:
 - a client treatment plans;
 - quarterly reviews;
 - progress notes; and
 - termination summaries.
6. Respondent failed to complete the required documents prior to leaving his employment at Rutland Mental Health Services, and, failed to complete the required documents after two (2) follow-up letters from his employer.

Office of the
ATTORNEY
GENERAL
109 State Street
Montpelier, VT
05609

Charges

7. Respondent, by his acts and/or omissions above, has engaged in unprofessional conduct pursuant to, and in violation of, 3 V.S.A. §129a (a)(3) (failing to comply with state statutes or rules) and 3 V.S.A. §(a)(7)(willfully failing to file the proper reports or records).

Understandings

- A. The Respondent understands that the Board of Allied Mental Health Practitioners must review and accept the terms of the Order set forth below and that if the Board rejects all or any portion of the Order, then this entire document shall be null and void.
- B. The Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
- C. The Respondent is not under the influence of any drugs or alcohol at the time this document is being signed.
- D. The Respondent agrees that he has had sufficient opportunity to consult with legal counsel before signing this document.
- E. The Respondent is voluntarily waiving his right to a contested hearing before the Board of Allied Mental Health Practitioners.
- F. The Respondent agrees that the Order set forth immediately below may be entered by the Board of Allied Mental Health Practitioners.

Consent Order

- G. Based on the above stipulations, it is **ADJUDGED** as follows:

(1) The "Facts" listed above are true; and

(2) The Respondent has engaged in unprofessional conduct in that the Respondent has:

- a Failed to comply with federal or state statute or rules governing the practice of the profession in that he willfully failed to file the proper reports or records.

- H. Based on the above stipulation and on the above Findings and Conclusions of this Board, it is **ORDERED** follows:

The Respondent's license is hereby **REPRIMANDED**.

- I. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

- J. This Stipulation and Consent Order will remain part of the Respondent's licensing file and may be used in determining sanctions in separate future disciplinary matters.

AGREED TO:

Date: 5-7-01

BY: GARY THOMPSON
RESPONDENT

Gary M. Thompson
Gary Thompson

AND BY: STATE OF VERMONT
WILLIAM H. SORRELL
ATTORNEY GENERAL

Date: 5/8/01

George C. Haegle IV
George C. Haegle IV
Assistant Attorney General

ACCEPTED AND SO ORDERED:

Date: 5-17-01

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Vern B. Seelye
Chairperson

Dated entered: 5-22-01